

LEASE AGREEMENT

THIS AGREEMENT FOR LEASE/LEASE AGREEMENT OF LAND ("Agreement") made at Handwara on 21st day of December 2021 between Naseema Begum W/o: Mohammad Maqbool Bhat R/o: Handwara, (hereinafter referred to as the "LESSOR" which expression, unless repugnant to the context or meaning thereof, will include its successors and assigns).

AND

M/s. "Symphony Educational Trust" a Trust/Society incorporated under Trust Act 1882 registered under the Trust Act 1882 and having its registered office at Iqbalabad Handwara and represented by its Authorised Signatory Sri./Smt. 1. Imtiyaz Maqbool Bhat S/o: Mohammad Maqbool Bhat R/o: Iqbal Abad Handwara 2. Khalid Maqbool Bhat S/o: Mohammad Maqbool Bhat R/o: Iqbalabad Handwara 3. Rukhsana Maqbool Bhat D/o: Mohammad Maqbool Bhat R/o: Iqbal Abad Handwara as per the Resolution passed by the Board of Trustees Dated: 02.12.2021

(Hereinafter referred to as the 'LESSEE', which expression unless repugnant to the context or meaning thereof, shall include its successors and assigns).

(Wherever the context so requires, the LESSOR and the LESSEE shall be collectively referred to as the 'Parties' and individually as the 'Party')

WITNESSETH:

AND WHEREAS, LESSOR has acquired land in the estate Handwara from various owners and guided by the objectives of revenue maximization; economic development; social development; and the infrastructure development or any combination of the foregoing objectives, has framed the rules, regulations and standing orders for the allotment of the acquired lands for the purpose of establishment of School under the name and style of "G.D. Goenka Public School" in tehsil Handwara District: Kupwara.

AND WHEREAS the LESSEE being the "Franchisee" of the school "G.D. Public School" after obtaining the said Franchisee by virtue of the Education Services Agreement and in this context requires the land up to 40 Kanals in the estate Handwara District: Kupwara (hereinafter referred to as "the Lease land").

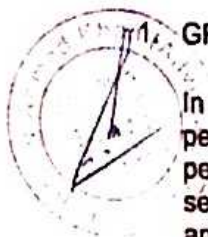
AND WHEREAS the LESSOR, has given on lease to the lessee Land measuring 40 Kanals under survey/Khasra no.2112 measuring 4 Kanals, 2162 measuring 1 Kanal 2 Marlas, 2156 measuring 1 Kanal 10 Marlas, 2109 measuring 1 Kanal 19 Marlas, 2371/2160 measuring 2 Kanal 9 ½ Marlas, 2052 measuring 5 Kanal 18 Marlas, 2456/2117 measuring 2 Kanal 10 Marlas, 2885/2113 measuring 5 Kanal 12 Marlas, 2053 measuring 2 Kanal 5 Marlas, Marlas, 2115 measuring 1 Kanal 7 Marlas, 1904 measuring 2 Kanal 7 Marlas, 2683/2157 measuring 1 Kanal 9 Marlas, 1477/1925 measuring 1 Kanal 14 ½ Marlas, 2683/2157 measuring 1 Kanal 9 Marlas, 2477/1925 measuring 1 Kanal 12 ½ Marlas, 2112/1 measuring 18 Marlas in the Estate Handwara along with one three storey building concrete measuring 7500 Sq/Ft. per storey and the total measurement of three storey building is 22500 sq feet approximately ("Schedule of Property is enclosed") which is more fully described in the schedule hereunder, as per its Extracts of Girdwari on lease hold basis for the Lease Period (defined hereafter).

AND WHEREAS the vacant possession of the Schedule Property has been delivered to the LESSEES for purpose of promoting education in the Handwara area on execution of this Agreement to Lease;

AND WHEREAS, the LESSOR having acquired the rights of the land and having absolute possession and power to lease the Schedule Property, is executing this Agreement to Lease in favour of the LESSEES (defined hereinafter) in accordance with the provisions of and on the terms and conditions herein contained.

AND WHEREAS the LESSEES have as a condition precedent are being placed in possession of the Schedule Property made the total payment of the Lease Premium fixed at 60,000/- (Rupees Sixty Thousand Only) per Kanal of Land with an increase of 30% after every three years on the per Kanal of land.

NOW THEREFORE IN CONSIDERATION OF THE ABOVE RECITALS AND IN PURSUANCE OF THE PRESENTS WITNESSETH AND IT IS HEREBY AGREED AND CONFIRMED BY AND BETWEEN THE PARTIES AS FOLLOWS:



GRANT OF LEASE

In consideration of the Lease amount of Rs. 60,000/- (Rupees Sixty Thousand only) per annum with an increase of 30% on rent by after every three years on basic rent per Kanal of land, Lease Rent and other amounts to be payable by the LESSEES as set out in this Agreement, the Lessor agrees to lease unto the LESSEES all that piece and parcel of land measuring to an extent of 40 Kanals under survey/Khasra no.2112 measuring 4 Kanals, 2162 measuring 1 Kanal 2 Marlas, 2156 measuring 1 Kanal 10 Marlas, 2109 measuring 1 Kanal 19 Marlas, 2371/2160 measuring 2 Kanal 9 ½ Marlas, 2052 measuring 5 Kanal 18 Marlas, 2456/2117 measuring 2 Kanal 10 Marlas, 2885/2113 measuring 5 Kanal 12 Marlas, 2053 measuring 2 Kanal 5 Marlas, Marlas, 2115 measuring 1 Kanal 7 Marlas, 1904 measuring 2 Kanal 7 Marlas, 2683/2157 measuring 1 Kanal 9 Marlas, 1477/1925 measuring 1 Kanal 14 ½ Marlas, 2683/2157 measuring 1 Kanal 9 Marlas, 2477/1925 measuring 1 Kanal 12 ½ Marlas, 2112/1 measuring 18 Marlas in the Estate Handwara Tehsil: Handwara District: Kupwara along with one three storey building concrete measuring 7500 Sq/Ft per storey and the total measurement of three storey building is 22500 sq. feet approximately @rate of 20/- rupees per sq/ft with an increase of 30% on the rent after every five years on the said building situated at Handwara Tehsil: Handwara District: Kupwara hereinafter referred to as the "Schedule Property" and more particularly described in the Schedule to this Agreement to Lease and on compliance by the LESSEES with the terms and conditions.

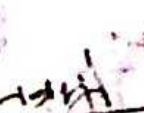
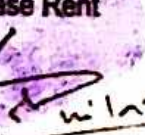
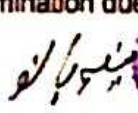
2. LEASE PERIOD AND LEASE COMMENCEMENT

The term of the Lease shall be for 33 (Thirty Three) years and this term may be extended at the sole discretion of the Lessor up to two times, each for a period up to 33 years ("Lease Period"). The Lease Period shall commence from the date of Agreement to Lease.

3. PAYMENT OF LEASE RENT

The LESSEES shall pay the annual lease rent at Rs.60,000/- (Rupees Sixty Thousand only) per Kanal i.e., a total amount of Rs. 24,00,000/- (Rupees twenty Four lakh only) for the Schedule Property and Rupees 20 per sq/ft for 22500 sq feet of the building amounting rupees 5,400,000/- per annum and after every five years the rent will be increased by 30% on the basic rent fixed which include area concrete along with facility of washrooms and other attachments.

Termination due to non-payment of Lease Rent



The Parties agree that if there is any failure on the part of the LESSEES to pay the Lease Rental or any other charges as agreed or may be due under this Agreement, the same shall be construed as the breach of this Agreement to Lease and the LESSOR shall be entitled to terminate this Agreement to Lease and resume the land allotted by the LESSOR under this Agreement in accordance with the procedure set out in the Agreement. .

4. PURPOSE/PROJECT/USE:

4.1 The Parties agree that the Schedule Property has been allotted to the LESSEES by the LESSOR for setting up of School "G.D. Goenka Public School" ("the Project" or "the Purpose" or "the Use"). The LESSEES shall implement the said Project and commence commercial operations as laid down herein after.

4.2 Change in Use

The LESSEES shall not change the use of the Schedule Property or the buildings thereon for any purpose other than the one prescribed in the Agreement to Lease, either fully or partly without the prior permission of the LESSOR in writing and without payment of prescribed additional Lease Premium and other charges as may be determined by the LESSOR from time to time.

4.3 The LESSEES undertakes that as and when the Schedule Property is no longer required by the LESSEES for the aforesaid Project/Purpose, the LESSEES shall forthwith relinquish and surrender the land in favour of the LESSOR, and in the event of such surrender, the LESSOR is not obligated to refund the cost of the Schedule Property paid by the LESSEES. In the event of cancellation/ resumption of the Schedule Property leased, the payments made by the LESSEE shall stand forfeited, towards the use and occupation of the Schedule Property. However the LESSOR may, at its option, consider the refund of the amounts paid by the LESSEES subject to the deductions and other terms and conditions.

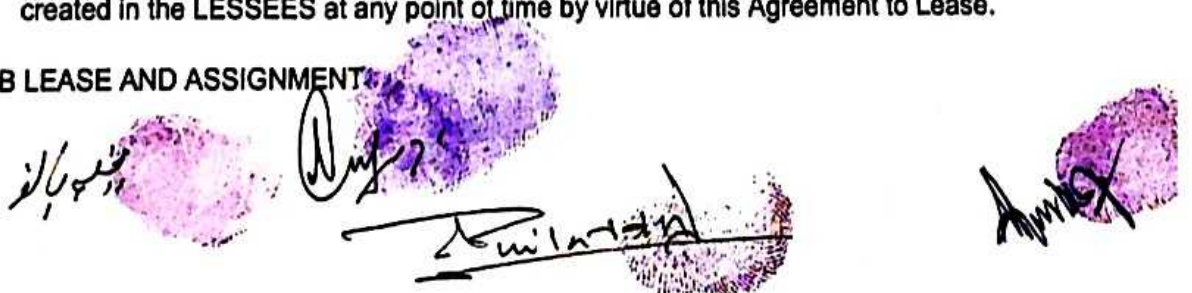
4.4 The amounts paid towards process fee, penalties and surcharges shall not be refunded to the LESSEES.

4.5 All charges in respect of water, power, drainage, sewage disposal, street lighting and other utilities, property tax and concerned taxes will be paid to and settled by the Lessees with the concerned authorities.

4.6 If there are any buildings whether constructed or not by the LESSEES on the land in the Schedule Property, the LESSOR may at its option either refund the cost as assessed by it after the assessed cost is collected from the incoming party or otherwise direct the LESSEES to remove the buildings at their cost within such time as may be allowed by the LESSOR.

4.7 The Parties agree that no amounts whatsoever shall be refundable on the termination/surrender/expiry of the Lease Period and no ownership rights, title , interest whatsoever on/into the Schedule Property shall ever be deemed to have been created in the LESSEES at any point of time by virtue of this Agreement to Lease.

5. SUB LEASE AND ASSIGNMENT

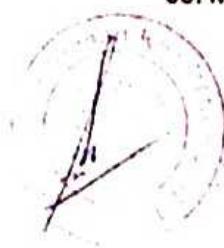
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5.1 The LESSEE shall not, directly or indirectly sell, assign, mortgage, sublet or underlet, or otherwise transfer fully or in part, the Schedule Property or its interests therein or transfer the possession of the Schedule Property either wholly or partially, to any Person (legal or natural) during the subsistence of Agreement to Lease. However, the LESSEES shall be entitled to sublease or assign its leasehold interest in the Schedule Property upon obtaining prior consent in writing from the LESSOR and upon compliance of the following conditions to the satisfaction of the LESSOR:

1. LESSEES shall pay to the LESSOR the transfer charges, as may be determined by the LESSOR from time to time.
2. LESSEES shall ensure that the transferee/sub-lessee/assignee executes the necessary documentation including but not limited to a deed of adherence undertaking to perform all the obligations under the Lease Deed including the covenants for utilization of land in the Schedule Property solely for the purpose for which it is allotted by the LESSOR to the original LESSEE.
3. The assignee or sub-lessee shall have at least the same qualifications as prescribed by the LESSOR vis-à-vis the original LESSEE.

5.2 The LESSEE shall abide with all the rules and regulations governing the law relating the lease agreements and also abide by any other terms & conditions as may be communicated by the LESSOR from time to time. In case any question/doubt arises on the leased land under this Agreement, the decision of the LESSOR shall be final and binding on the LESSEE.

06. MORTGAGE/FINANCIAL ASSISTANCE

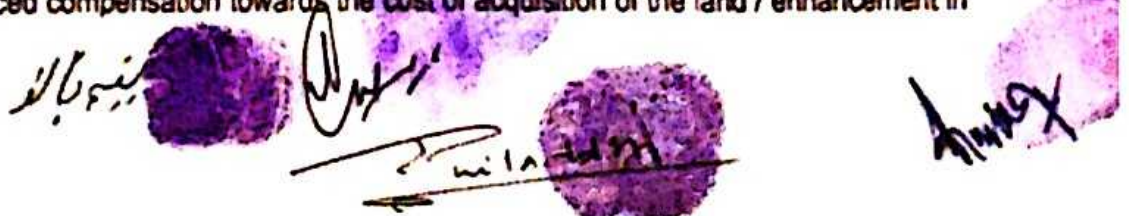


6.1 The LESSEES may create charge or mortgage the leasehold rights and the construction there on, but not on Schedule Property, for the limited purpose of raising loan from Nationalized /Scheduled Banks, or other lending Institutes subject to the condition that such amount shall be utilized for the purpose of development of the Schedule Property. However, all such mortgages, charges or encumbrances shall be subject to the rights of the LESSOR under this Agreement and any modification or amendment thereto for the time being in force.

6.2 The LESSOR may prescribe such other conditions for mortgage of the Schedule Property, in whole or in part by the LESSEE, as per the Rules and regulations prevailing from time to time.

6.3 The LESSEE undertakes to inform the LESSOR the details of finance(s) raised on the security of the Schedule Property from time to time till the loan(s) is/are repaid to the financial agencies/lenders by the LESSEE. It shall be mandatory for the LESSEE to ensure that the financial agency/bank/lender which finances to the LESSEE on the security of the Schedule property, shall inform the LESSOR the details of finance(s) from time to time till the loan(s) is/are repaid by the LESSEE and also comply the terms & conditions of NOC, if any, issued by the LESSOR on the request of the Intending LESSEE and the Banker / Financing agency, above stated. The LESSEE shall obtain written permission of the LESSOR before subjecting the Schedule Property to any mortgage or encumbrances whatsoever.

6.4 The LESSEE/LESSEE undertakes and agrees to pay/refund the LESSOR any further amount or dues as may be notified by the LESSOR, in case the LESSOR is finally obliged to pay any higher sum towards development charges and payment of enhanced compensation towards the cost of acquisition of the land / enhancement in



the cost of the land under the said Development Agreements, during the Lease Period or its renewal thereof, without any demur or protest by the LESSEE/LESSEE.

07. GENERAL TERMS AND CONDITIONS OF LEASE

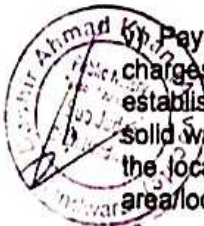
7.1 The Lease Agreement executed by the LESSOR upon fulfilment of terms and conditions in this Agreement or as may be prescribed by the LESSOR from time to time including the following general terms and conditions:

i) LESSEE during the lease period, shall pay all the rates, taxes, and other charges due and becoming due in respect of the Schedule Property;

ii) Whenever any of the charges recoverable under (i) above or the Lease Rent, falls into arrears, the LESSOR shall be entitled to recover the same as 'Arrears of Land Revenue', as per the procedure laid down in law from time to time.

iii) The LESSEE shall pay all costs and expenses, incidental to the preparation, execution and registration of all documents or instruments of lease including the stamp duty and registration charges prescribed under law, the Indian Stamp Act, 1899 and Registration Act, 1908.

iv) Notice of demand: Any letter or notice sent by the LESSOR through the Registered Post with acknowledgment due or through the Electronic Post (E Mail) to the LESSEE at the address or E-Mail Address with read receipt requested given in the Agreement to Lease shall be deemed to have been legally delivered and served upon the LESSEE.



v) Payment of Service Charges: The LESSEE shall pay to the LESSOR the service charges as determined by the LESSOR from time to time, towards the cost of establishing and maintaining civic amenities such as roads, water, drainage, sewage, solid waste collection and management etc. This service charge shall be payable to the local body as and when the same is so authorized or is newly created in the area/local area in which the Schedule Property is situated.

vi) LESSEE shall obtain necessary clearances including the environmental clearances, if applicable, etc. from the UT/State/Government of India Authorities

vii) LESSEE/LESSEE shall be liable to pay service tax or any other tax in form of Service Tax.

8. COVENANTS AND UNDERTAKINGS OF THE LESSEE:

8.1 The LESSEE shall use the Schedule Property for establishment of School "G.D. Goenka Public School" in Tehsil Handwara District: Kupwara . The LESSEE hereby agrees that they shall not put up any structure or building otherwise than as per the approved plans and the Detailed Project Report (DPR), which shall be prepared and submitted to the LESSOR upon the receipt of the Letter of Intent. Any changes in the DPR shall be done with prior approval of the LESSOR. The LESSEE expressly agrees and undertakes that the Schedule Property shall be utilized exclusively only for the Purpose set-forth herein and initially mentioned in the Letter of Intent and that no change shall be made without the written sanction of the LESSOR.

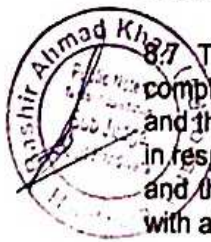
8.2 The LESSEE undertakes and covenants to keep the buildings and all additions, there to and boundary walls thereof and the drains, soil and other pipes and sanitary and water apparatus and appurtenances thereof in good and running condition during the Lease Period.

8.3 The LESSEE agrees not to make or permit any alterations or additions to the approved building including digging any open wells/sinking a bore well or excavating sub-soil for any other purpose other than the Project/School without obtaining the previous consent/permission in writing of the LESSOR or cause any injury to the walls and fittings thereof in the Schedule Property.

8.4 The LESSEE agrees not to permit any lease by auction upon the premises whether in whole or in part or suffer the premises in the Schedule Property to be used in such a way as to cause nuisance or annoyance or inconvenience to the neighbours/occupiers of the area adjoining the Schedule Property.

8.5 The LESSEE agrees not to transfer or change the ownership/constitution of the nature of the business relating to the Schedule Property, whether in whole or in part without obtaining specific permission in writing of the LESSOR.

8.6 The LESSEE agrees to allow the LESSOR to recover the amounts due to it under this Agreement in any way recoverable by it from the LESSEE as per applicable law in force at the time without prejudice to the rights of the financing agency/lender.



8.7 The LESSEE understands that the LESSOR is competent to enforce the compliance of the terms of the Lease and this Agreement with all the rules, regulations and the provisions of any other Act in force and standing orders thereunder, whether in respect of the implementation of the Project or for any purpose connected therewith and the LESSEE shall be responsible for compliance of the aforesaid at their costs with all instructions issued by the LESSOR from time to time in this regard.

8.8 The LESSEE agrees that the property tax, advertisement tax, fee for building permits, permissions for installation of plant and machinery etc., shall be paid to the authority as may be notified by the Government or as may be informed by the LESSEE.

8.12 The LESSEE agrees that the LESSEE shall abide by any other conditions as may be imposed in course of time during the Lease Period or its renewal term/s, if any, by the LESSOR. All the costs and expenses of and incidental to the preparation, execution and registration of this Agreement to Lease shall be paid by the LESSEE.

09. GROUNDS FOR TERMINATION

9.1 Including but not limited to the below mentioned circumstances, the LESSOR may determine the Lease if:

1. The LESSEE is unable to use the land at any point in time during the tenure of the Lease, as prescribed under the Agreement to Lease/ Lease Agreement including the LESSEE's failure to achieve implementation milestones.
2. The LESSEE fails to pay the Lease Rent or other charges/dues to the LESSOR or the Government as agreed in the instant agreement.
3. The LESSEE sells, assigns, sublets, underlets or in any other manner either parts with its lease hold rights in the Schedule Property including the sale or attempt to sell the plot of land in Schedule Property fully or partly, at any point in time during the tenure of the lease, without obtaining necessary permission in writing from the LESSOR.

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[Signature]

[Signature]

[Signature]

4. Fails to obtain (except for force majeure circumstances) the building permission, commence and/or complete the construction of the buildings structures or is otherwise unable to take possession of the land, or achieve the milestones in terms of the Agreement to Lease. .
5. Fails to observe and perform in accordance with the terms and conditions of the Agreement to Lease and/or the permit(s).
6. Fails to carry out the construction on the Schedule Property with utmost care, diligence and in accordance with the best industry practices.
7. Changes the ownership during the lock-in period as mentioned, in case of a consortium.

The lease agreement is executed at Handwara District Kupwara, J&K (UT) it is hereby agreed upon by the lessee and the lessor that in the event of any dispute in relation to the land under lease, condition of lease, the dues realisable under the lease and in respect of all matters touching the relationship of the lessee and the lessor the suits or appeals shall be filed in the civil courts at Handwara District: Kupwara and it is hereby expressly agreed that neither party shall be incompetent to file a suit or bring any action or file any petition other than the courts named above.

In witness whereof the Lessor and the Lessee have executed this lease agreement at place and date herein before already mentioned.

WITNESSES

Name: Yahid Maqbool Bhat
S/o: Sh. Ahmad Bhat
R/o: Handwara

Name: Sh. Ahmad Bhat
S/o: Ab. Rehman Bhat
R/o: Handwara Tal: Handwara

No. 1173
Dated 28.12.2017



Execution of Yahid Maqbool Bhat (Advocate)
Notary Public Handwara

LESSOR

Naseema Begum

LESSEE

1. Imtiyaz Maqbool Bhat

2. Khalid Maqbool Bhat

3. Rukhsana Maqbool Bhat

Yahid Maqbool Bhat
Advocate
High Court of J&K
Distt. & Session Court Handwara

"SCHEDULE OF PROPERTY"

Copy of the extracts of Girdwari of estate Handwara District: Kupwara translated from Urdu in English are as under:

Name of the Owner	Purchased from	Land measuring	Survey number/Khasra Number
1. Naseema Begum W/o: Mohd Maqbool Bhat	Bashir Ahmed, Ab Rashid, Nazir Ahmed, Ashiq Hussain all sons f Sonaullah Bhat	4 Kanals	2112
2. -Do-	Mst. Saja W/o: Ahmed Bhat	1 Kanal 2 Marlas	2162
-Do-	Bashir Ahmed	1 Kanal 10 Marlas	2156
-Do-	Gh Ahmed S/o: Rehman Bhat	1 Kanal 19 Marlas	2109
5. -Do-	Gh Ahmed S/o: Rehman Bhat	2 Kanal 19 ½ Marlas	2371/2160
6. -Do-	Javed Ahmed, Showket Ahmed Ss/o: Rehman	5 Kanal 18 Marlas	2052
7. -Do-	Fayaz Ahmed	2 Kanal 5 Marlas	2053
8. -Do-	Showket Ahmed	2 Kanal 10 Marlas	2456/2117
9. -Do-	Gh Mohuddin S/o: Mohd Maqbool	5 Kanal 12 Marlas	2885/2113
10. -Do-	Rashid Dar and other	1 Kanal 7 Marla	2115
11. -Do-	Mst Raja	2 Kanal 7 Marlas	1904
12. -Do-	Gh Hassan	1 Kanal 9 Marlas	2683/2157
13. -Do-	Jamal	1 Kanal 14 ½ Marlas	1477/1925
14. -Do-	Jamal	1 Kanal 12 ½ Marlas	2477/1925
15. -Do-	Bashir Ahmed, Ab Rahsid, Nazir Ahmed, Ashiq Hussain sons of Sonaullah	18 Marlas	2112/1

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That the Lessor has transferred unto the LESSEES all that piece and parcel of land measuring to an extent of 40 Kanals shown in this "Schedule of property" supra under survey/Khasra no.2112 measuring 4 Kanals, 2162 measuring 1 Kanal 2 Marlas, 2156 measuring 1 Kanal 10 Marlas, 2109 measuring 1 Kanal 19 Marlas, 2371/2160 measuring 2 Kanal 9 ½ Marlas, 2052 measuring 5 Kanal 18 Marlas, 2456/2117 measuring 2 Kanal 10 Marlas, 2885/2113 measuring 5 Kanal 12 Marlas, 2053 measuring 2 Kanal 5 Marlas, Marlas, 2115 measuring 1 Kanal 7 Marlas, 1904 measuring 2 Kanal 7 Marlas, 2683/2157 measuring 1 Kanal 9 Marlas, 1477/1925 measuring 1 Kanal 14 ½ Marlas, 2683/2157 measuring 1 Kanal 9 Marlas, 2477/1925 measuring 1 Kanal 12 ½ Marlas, 2112/1 measuring 18 Marlas in the Estate Handwara Tehsil: Handwara District: Kupwara, including the three storey concrete building measuring 22500 Sq. feet in a same portion of land in estate Handwara Tehsil: Handwara District: Kupwara J&K.

For and on behalf of LESSOR

Naseema Begum

Witnesses:

1)

2)

For and on behalf of LESSEES

1. Imtyaz Maqbool Bhat

2. Khalid Maqbool Bhat

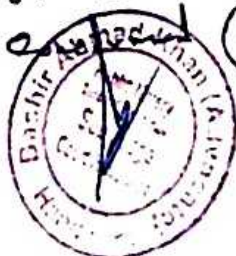
3. Rukhsana Maqbool Bhat

Witnesses:

1)

2)

The 'Schedule of Property' is issued as per the property/land shown on the Extract of Survey Form in Kupwara by the competent Patwari/Revenue officers of area attached.



Bashir Ahmad Khan
Advocate
Public Notary
Handwara